

AMIN v. VANDENBERG et al

20CV44940

PLAINTIFF'S MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT

This is a personal injury action involving a dog bite at an RV park. Before the Court this day is plaintiff's motion for leave to file a First Amended Complaint. Plaintiff generally wishes to add new negligence claims, revive a previously dismissed claim, and add new parties.

To amend a pleading already at issue, the sponsoring party is required first to seek leave of court by way of noticed motion. (CCP §473(a)(1).) Pursuant to California Rules of Court, Rule 3.1324, the moving party must:

- a) Specify in the moving papers by page, paragraph, and line number the allegations proposed to be added and/or deleted; and
- b) Include with the moving papers:
 - a copy of the proposed amended pleading; and
 - a declaration specifying:
 - (1) the effect of the amendment(s);
 - (2) why the amendment is necessary and proper;
 - (3) when the facts giving rise to the amended allegations were discovered; and
 - (4) the reasons why the request was not made earlier.

The supporting declaration is devoid of the required elements for leave to amend. The declaration merely authenticates proposed exhibits without regard to their import or timing. While the memorandum does address the salient concerns, the memorandum is not verified as a declaration would be. This is particularly important where, as here, the opposing party suggests that the proffered amendments are sham.

To be clear, a court will not ordinarily consider the validity of the proposed amendment in deciding whether to grant leave to amend (that can normally be dealt with via demurrer) and may not condition leave upon the submission of evidence substantiating the new claim(s). (*Sanai v. Saltz* (2009) 170 Cal.App.4th 746, 769-770.) However, the court has discretion to deny leave to amend where the new claim is, on its face, fatally flawed or where the amendment is a sham. (See *Edwards v. Superior Court* (2001) 93 Cal.App.4th 172, 180; *Yee v. Mobilehome Park Rental Review Board* (1998) 62 Cal.App.4th 1409, 1429; *Garcia v. Roberts* (2009) 173 Cal.App.4th 900, 912; *State ex rel Metz v. CCC Information Services, Inc.* (2007) 149 Cal.App.4th 402, 412.) In this case,

the lack of any sworn statement from counsel is sufficient to find a failure to meet the burden of proof in favor of granting leave.

Motion DENIED without prejudice.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further order is required.